

		The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving attorney to give notice.
103	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	<i>Off-Calendar.</i>
104	Ju vs. Yeo, 23-01347065	Defendant JUNG MI YEO ("YEO") will move the court for an order to stay the instant case during the adjudication of an earlier lawsuit pending in a different jurisdiction with identical claims, facts, and parties ("MOTION TO STAY"). <i>Farmland Irr. Co. v. Dopplmaier</i> (1957) 48 Cal.2d 208 advises: "When an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction, a stay of the California proceedings is not a matter of right, but within the sound discretion of the trial court. In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced." [<i>Farmland Irr. Co. v. Dopplmaier</i> (1957) 48 Cal.2d 208, 215.] Here, Defendant argues this case should be stayed while a dissolution case proceeds in Seoul, Korea between Plaintiff Sae Heung Ju and Defendant Jung Mi Yeo. Based on Attorneys John A. S. Baik (defense counsel herein) and Jae Hoon Choi (Moving party's attorney in Korea case) representations; and after considering the

		issues of comity, interest in adjudicating the issues, the prevention of multiple litigation and inconsistent result, judicial economy, and convenience of witnesses—this Court finds a stay is in order and resolution of the marriage dissolution in Korea should proceed first. Therefore, the unopposed Motion is GRANTED and this case is stayed. The Court sets an OSC re whether the stay should be lifted for December 10, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
105		<i>Off-calendar.</i>
106	Hackworth vs. Talend, 25-01469403	<i>Case Management Conference</i> <i>Demurrer to Amended Complaint</i> Defendant QLIKTECH INC., erroneously named as Talend ("Defendant") filed a Demurrer to the entire First Amended Complaint on the grounds that the Complaint is time barred and uncertain such that it fails to state facts sufficient to constitute the causes of action alleged. Plaintiff Jethro Hackworth, proceeding in proper ("Plaintiff") filed an opposition. The First Amended Complaint contains the following causes of action: (1) failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512, (2) waiting time penalties pursuant to Labor Code sections 201-203, and (3) breach of implied covenant of good faith and fair dealing. (ROA 39.) "[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.) "However, '[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.'" (<i>Ibid.</i>)